

24STCV03332 24STCV03332

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Case Number: 24STCV03332 Hearing Date: July 9, 2026 Dept: 224

TENTATIVE RULING

The Motion for Judgment on the Pleadings is GRANTED in favor of Plaintiff Cesar Cotto and against Defendant Chronic Pain Relief Center on the First Cause of Action for Violation of the Unruh Civil Rights Act.

Plaintiff is to submit a proposed judgment within 5 days. The Court sets a nonappearance case review for signing of the judgment on July 17, 2026.

Introduction

On February 8, 2024, Plaintiff filed a Complaint alleging that Defendant Chronic Pain Relief Center's website (www.chroniclb.com) contains accessibility barriers that prevent blind and visually-impaired users from independently accessing the goods and services offered in connection with Defendant's brick-and-mortar location in Long Beach. The Complaint asserts a single cause of action for violation of the Unruh Civil Rights Act, Civil Code § 51 et seq., predicated in part on alleged violations of Title III of the Americans with Disabilities Act, 42 U.S.C. § 12181 et seq.

On June 26, 2025, the Court granted Plaintiff's Motion to Deem Admitted the Truth of Facts in Plaintiff's Requests for Admission (Set One) and imposed monetary sanctions of \$500 against Defendant.

On July 30, 2025, Plaintiff filed the instant Motion for Judgment on the Pleadings.

No opposition has been filed.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Kathryn Nahigian, executed on July 30, 2025, sets forth the meet and confer efforts of counsel for the Plaintiff, and counsel's attempts to resolve the disputes informally by telephone. The Court finds that the declaration does not

satisfy the requirement of Code of Civil Procedure section 430.41, that "... the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer." Nonetheless, given how long the Motion has been pending, the Court will exercise its discretion to address the merits.

Request for Judicial Notice

Plaintiff requests judicial notice of (1) the Court's June 26, 2025 Order deeming admitted Plaintiff's Requests for Admission (Set One), and (2) the underlying Requests for Admission. The request is granted.

Legal Standard

A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) "Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense." (Ibid.)

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) The Court "must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed." (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

First Cause of Action: Unruh Civil Rights Act

Plaintiff argues that Judgment on the Pleadings should be granted in his favor because Defendant has admitted in its Requests for Admission that (1) Plaintiff is disabled, (2) Defendant owns and/or operates a place of public accommodation and the website, which has a nexus or connection to Defendant's brick-and-mortar retail location, (3) Defendant's website has accessibility barriers relating to Plaintiff's disability, (4) Plaintiff encountered and has actual knowledge of the barriers on Defendant's website, and (5) the barriers on the website denied Plaintiff full and equal enjoyment of the website. (See RJN, Exh. 2.)

The trial court deciding such a motion may consider facts pleaded and any matters subject to judicial notice. (Sebago, Inc. v. City of Alameda, 211 Cal.App.3d 1372

(1989).) A court may take judicial notice of "admissions or inconsistent statements by a party in earlier pleadings in the same lawsuit" and "may disregard conflicting factual allegations in the challenged pleading" (Alameda County Waste Management Authority v. Waste Connections US, Inc., 67 Cal.App.5th 1162 (2021).) Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300" (CCP § 2033.410.)

Under the Unruh Act, "[a]ll persons within the jurisdiction of this state are free and equal . . . and no matter what their . . . disability [or other protected characteristic] . . . are entitled to the full and equal accommodations, advantages, facilities,

privileges, or services in all business establishments of every kind whatsoever." (Civ. Code, § 51; see also CACI No. 3060.) "Whoever denies, aids, or incites a denial, or makes any discrimination or distinction" contrary to the Unruh Act is liable for damages. (Civ. Code, § 52, subd. (a).) Moreover, a violation of the Americans with Disabilities Act (ADA) also qualifies as a violation of Unruh. (Civ. Code, § 51, subd. (f).)

A cause of action under Unruh consists of the following elements: (1) the defendant denied the plaintiff access to full and equal accommodations, advantages, facilities, privileges, or services in a business establishment; (2) the plaintiff's membership in a protected class was a motivating factor for this denial; and (3) defendant's wrongful conduct caused plaintiff to suffer injury, damage, loss or harm. (See *Wilkins-Jones v. County of Alameda* (2012) 859 F.Supp.2d 1039, 1048.)

Here, Defendant has admitted that it operates a place of public accommodation as defined by 42 U.S.C. § 12181(7); that the place of public accommodation is a physical location; that the website www.chroniclb.com is available to the public; that consumers may make purchases through the website; that the website offers services and goods to consumers; that the website provides information about goods and services offered at Defendant's physical locations; and that the website sells goods and services also sold at Defendant's physical locations. (RJN, Exh. 2; RFA Nos. 1-6, 20-21.) The Court deemed the RFAs admitted on June 26, 2025. (RJN, Exh. 1.) These admissions establish that Defendant operates a "business establishment" within the meaning of Civil Code § 51 and that the website is a service of that establishment with a sufficient nexus to the physical place of public accommodation. (See *Thurston v. Midvale Corp.* (2019) 39 Cal.App.5th 634; *Martinez v. San Diego County Credit Union* (2020) 50 Cal.App.5th 1048.)

Defendant has further admitted that, both at the time the Complaint was filed and at the time the requests were served, visually-impaired persons were denied goods and services on the website that were available to non-visually-impaired persons; that the website was not as accessible to visually-impaired users as to persons without visual impairment; that barriers on the website impeded visually-impaired individuals from full and equal enjoyment of Defendant's place of public accommodation; that the website does not comply with WCAG 2.1 Level AA; and that Plaintiff personally was denied full and equal enjoyment of the website. (RJN, Exh. 2; RFA Nos. 7-12, 14-15, 17.) The first element is established.

Plaintiff is legally blind and uses JAWS screen-reading software to access the internet. Defendant has admitted that Plaintiff has standing to bring this action (RJN, Exh. 2; RFA No. 26). Disability is a protected characteristic under Civil Code § 51(b). The admissions further establish that the denial of access was based on Plaintiff's disability. Defendant has admitted that visually-impaired users were denied goods and services on the website that were available to non-visually-impaired users and that the barriers on the website specifically impeded visually-impaired individuals. (RJN, Exhibit 2; RFA Nos. 7-8, 11-12.) Because Plaintiff's Unruh claim is predicated on a violation of the ADA, Plaintiff need not prove that Defendant acted with discriminatory intent; the denial of equal access to a person with a disability is itself actionable. (Civ. Code, § 51, subd. (f); *Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, 665, 670.) The second element is established.

Defendant has admitted that Plaintiff was denied full and equal enjoyment of the website and that Plaintiff has been deterred from Defendant's place of public accommodation because of his knowledge that the website is not accessible to visually-impaired users. (RJN, Exh. 2; RFA Nos. 17, 27.) Defendant has also admitted that Plaintiff is entitled to recover statutory damages under the Unruh Civil Rights Act. (RJN, Exh. 2; RFA No. 28.) These admissions establish that Defendant's conduct caused Plaintiff cognizable harm in the form of denial of equal access and deterrence from patronizing Defendant's business establishment. The third element is established.

Conclusion

After reviewing the Complaint and the matters subject to judicial notice, the Motion for Judgment on the Pleadings is GRANTED in favor of Plaintiff Cesar Cotto and against Defendant Chronic Pain Relief Center on the First Cause of Action for Violation of the Unruh Civil Rights Act.

Plaintiff is to submit a proposed judgment within 5 days. The Court sets a nonappearance case review for signing of the judgment on July 17, 2026.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.